

Title Report - Buyer - commitment should work - 2

Title Insurance Report: Plain Language Overview for Buyer

Executive Summary

?? IMPORTANT: This property is NOT ready for closing at this time.

Your title insurance commitment (Commitment #01-26006219-01T) has a readiness score of 67 out of 100, which means there are significant issues that must be fixed before you can complete your purchase. The most serious problem involves the deed that was recorded--it names the wrong people as the new owners. Additionally, there are questions about whether the current owner (an LLC) has the legal authority to sell you the property.

Bottom line: Do not schedule closing until these issues are resolved. Your title company and real estate attorney must address the problems outlined below.

Property Information

Detail	Information
Address	675 Bunker Hill Road, Columbia, MS 39429-7832
County	Marion County, Mississippi
Parcel Number	074-04-000-04-005
Property Size	88 acres
Property Type	Fee Simple (you own the land outright)
Assessed Value	\$9,030
Total Estimated Value	\$60,190

The Parties Involved

Current Owner

- GARNER TREE FARM, LLC (a Mississippi Limited Liability Company)
- Members: Ricky Lane McPhail, Terri Garner Crawley, Patsy Garner Brewton, Karen Garner Delancey

Seller

- Terri G. Crawley (listed as individual seller)

You (The Buyer)

- Kyla B. Fortenberry (proposed owner)

Your Lender

- Society Mortgage (financing your purchase with a loan of \$80,808)

Title Insurance Company

- Old Republic National Title Insurance Company (will issue your insurance policy)

Critical Issues That Must Be Fixed

? CRITICAL ISSUE #1: Wrong Names on the Deed

What happened:

A deed was recorded on January 13, 2026, but it names Christopher Lane Thornhill and Sara E. Jackson as the new owners--not you (Kyla B. Fortenberry).

Why this is a problem:

- This creates a "break in the chain of title," meaning the legal ownership path is broken
- You cannot receive title insurance for a property you don't legally own
- The deed must be corrected immediately to name you as the buyer

What needs to happen:

- A new, corrected deed must be prepared and recorded that properly conveys the property from GARNER TREE FARM, LLC to you (Kyla B. Fortenberry)
- This must be done before closing

? CRITICAL ISSUE #2: Confusion About Who Can Sell the Property

What happened:

The property is owned by an LLC (GARNER TREE FARM, LLC), but the seller is listed as an individual (Terri G. Crawley, who is one of four members of the LLC).

Why this is a problem:

- An LLC is a separate legal entity from its members
- All four members of the LLC may need to approve the sale
- We need proof that the LLC has the authority to sell and that all members agree

What needs to happen:

Your title company must receive and review:

1. A copy of the LLC's operating agreement (the rules that govern how the LLC operates)
2. A resolution signed by all four members authorizing this sale
3. Proof that the LLC is in good standing with the State of Mississippi
4. Any other documents needed to confirm the LLC can legally sell the property

? HIGH PRIORITY ISSUE #3: Duplicate Mineral Rights Exceptions

What happened:

The title commitment lists mineral rights restrictions twice (Exceptions 1 and 8), creating confusion about what minerals are included.

What this means:

The property does NOT include oil, gas, coal, or other mineral rights. These have been separated from the land and are owned by someone else. This is actually common for rural property, but it's important you understand:

- You are buying the land and surface rights only
- You cannot drill for oil or gas
- You do not own mineral deposits beneath the surface

Status: This is being consolidated in the final policy and is less urgent than the other issues.

Other Requirements Status

Requirement	Status	Details
Bankruptcy Search	? COMPLETE	No bankruptcy filings found for the LLC, seller, or you
Deed of Trust Recording	? PENDING	Your mortgage deed must be recorded with Marion County
Open Liens Check	? COMPLETE	No other mortgages found on the property
Tax Status	? CURRENT	2025 property taxes are paid; no delinquent amounts

Property Exceptions (What's NOT Included)

The following items are exceptions to your title insurance coverage. In plain language, this means:

Easements (Rights for Others to Use Your Land)

- VYVX, Inc. Easement (recorded 1997): A utility company has the right to access the property for their lines
- Bunker Hill Water Association Easements (2009 and 2023): The water association has the right to maintain water lines on the property

What this means: These organizations can access specific areas of your property for maintenance and repairs. This is

normal and typically does not significantly impact the property's use.

Mineral Rights

- Oil, Gas, Coal & Mineral Interests: As noted above, these are NOT included with your purchase

Standard Exceptions

- Taxes and Assessments: You are responsible for all property taxes going forward
- Survey Issues: Any boundary or structural issues that would show up on a professional survey
- Mechanics' Liens: Claims by contractors or workers (none currently exist)
- Changes After Commitment Date: Any new issues that appear between now and closing

Overall Title Status & Risk Assessment

Readiness Score: 67/100

What this means: The title is approximately two-thirds ready for closing, but the remaining one-third contains critical defects that must be resolved.

Open Flags Summary

Flag Level	Issue	Impact
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? CRITICAL	Wrong grantee on recorded deed	BLOCKS CLOSING
? HIGH	Duplicate mineral exceptions	Needs consolidation
? MEDIUM	LLC vs. individual seller discrepancy	BLOCKS CLOSING

What Happens Next: Recommendations

Immediate Actions Required (Before Closing Can Proceed)

1. Fix the Deed Problem
 - Contact your real estate attorney immediately
 - A corrected deed must be prepared naming you (Kyla B. Fortenberry) as the grantee
 - This deed must be recorded in Marion County records
 - Estimated timeline: 3-5 business days
2. Obtain LLC Documentation
 - Request from the seller or LLC:
 - Operating agreement and any amendments

- Written resolution from all four LLC members approving the sale
- Certificate of good standing from Mississippi Secretary of State
- Your title company will review these documents
- Estimated timeline: 2-3 business days

3. Record Your Mortgage Deed

- Your lender (Society Mortgage) will prepare your deed of trust
- This must be recorded in Marion County before closing
- Estimated timeline: 1-2 business days

Timeline Estimate

Do not schedule closing until:

- ? Corrected deed is recorded (naming you as buyer)
- ? LLC documentation is received and approved
- ? Your mortgage deed is recorded

Realistic closing timeline: 7-10 business days from now, assuming all documents are provided promptly.

Questions to Ask Your Real Estate Attorney or Title Company

1. "When will the corrected deed be ready, and who is responsible for preparing it?"
2. "Has the seller provided the LLC operating agreement and member authorization?"
3. "What happens if one of the four LLC members refuses to sign the authorization?"
4. "Will the mineral rights exception affect my ability to use or sell the property in the future?"
5. "Are the water association easements likely to cause any problems?"
6. "When can we realistically schedule closing?"

Summary

Your purchase of 675 Bunker Hill Road is moving forward, but three significant issues must be resolved before closing:

1. The deed names the wrong buyers -- this must be corrected immediately
2. The LLC's authority to sell must be confirmed -- documentation is required
3. Your mortgage deed must be recorded -- this is routine and will happen at closing

These are not unusual problems, but they are serious and must be addressed. Your title company and real estate attorney are working to resolve them. Stay in close contact with them, and do not schedule closing until you receive confirmation that all issues have been cleared.

You will receive a final title insurance policy once all requirements are satisfied and the property is ready to transfer to you.